

Court No. - 40

Case :- WRIT - C No. - 34868 of 2022

Petitioner :- Durjan Singh

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Rateesh Singh

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Siddhartha Varma,J.

Hon'ble Ajit Singh,J.

Put up this case as fresh on 17.01.2023 in the top ten cases.

Order Date :- 16.12.2022

vkj

Court No. - 3

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Petitioner :- Durjan Singh

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Rateesh Singh

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner, learned standing counsel for the State - respondents and Sri Alok Mishra, learned counsel for the respondent nos. 2 & 3.

The petitioner's Electricity Connection was temporary disconnected on 21.11.2021 due to non payment of arrears. The petitioner could not remove the cause for temporary disconnection within six months in terms of para 4.38(I)(b) of the U.P. Electricity Supply Code, 2005 and as such his Electricity Connection was permanently disconnected on 15.05.2022. Thereafter the petitioner made payment of arrears on 27.05.2022 and 28.06.2022. As per para 4.39 of the U.P. Electricity Supply Code, 2005, a connection which is disconnected permanently shall not be reconnected and the consumer shall have to apply for a new connection.

In view of the aforesaid specific provisions of para 4.39 of the U.P. Electricity Supply Code, 2005, we find that the impugned order dated 13.07.2022 intimating the petitioner in terms of the para 4.39 of the Code, does not suffer from any error of law. Consequently, the writ petition is **dismissed** leaving it open for the petitioner to apply for connection in terms of the Clause 4.39 of the Code, 2005.

Order Date :- 17.1.2023/vkg